

The Orissa Right to Information Rules, 2005

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State of Odisha - Act

The Orissa Right to Information Rules, 2005

ODISHA

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The Orissa Right to Information Rules, 2005

Rule THE-ORISSA-RIGHT-TO-INFORMATION-RULES-2005 of 2005

Published on 1 October 2005

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The Orissa Right to Information Rules, 2005

Published vide Notification S.R.O. No. 477/2005 by Information & Public Relation Department, Government, of Orissa dated 1.10.2005 & Orissa Gazette Extraordinary No. 1617 dated 1.10.2005

S.R.Q. No. 477/2005 - In exercise of the power conferred by Section 27 of the Right to Information Act (No.22 of 2005), the State Government do hereby make the following rules, namely:

1.

Short title and commencement.

(1)

These rules may be called the Orissa Right to Information Rules, 2005.

(2)

They shall come into force on the date of their publication in the Orissa Gazette.

2.

Definitions.

(1)

In these rules, unless there is anything repugnant in the subject or context -

(a)

'Act' means the Right to Information Act, 2005 (No. 22 of 2005);

(b)

'BPL Card' means a card issued to any citizen who is below the poverty line;

(c)

'fee' means amount payable by the applicant for obtaining any information under the provisions of Sub-section (1) of Section 6 and Sub-sections (1) and (5) of Section 7 excluding the cost of providing information;

(d)

'form' means a form appended to these rules;

(e)

'identity' means an evidence to show the citizenship like an electoral photo identity card, a passport or any other document which can satisfy the authority about the citizenship of the person;

(f)

'Nodal Officer' means the Commissioner-cum-Secretary to Government, Information & Public Relations Department;

(g)

'Public Information Officer' means the State Public Information Officer designated under Sub-section (1) of Section 5 of the Act and (sic) an Assistant Public Information Officer designated as such under Sub-section (2) thereof;

(h)

'Schedule' means a Schedule appended to these rules; and

(i)

'State Government' means the Government of Orissa.

(2)

Words and expressions used but not defined in these rules shall have the meaning as assigned to them in the Act.

3.

Appointment & Obligations of Public Information Officers.

(1)

A public authority, if it is a department of State Government, shall designate as many officers as it deem proper, not below the rank of Under Secretary as Public Information Officers.

(2)

In each sub-ordinate office of the Department of Government including the Heads of Department and offices in the district and Sub-divisional level the head of such offices shall designate as many officers as they deem proper as Public Information Officers and Assistant Public Information Officers.

(3)

Every public authority other than those mentioned in Sub-rules (1) and (2) of the said Rule 3 shall designate one or more Public Information Officers in all administrative units and offices under such authority:

Provided that every such public authority shall, while designating such officers as Public Information Officers so designated, ensure that an officer higher in rank to public Information Officer, is available to be specified as Appellate Authority.

(4)

If, for any reason beyond the control of Public Information Officer furnishing of information is delayed, he shall record reasons with justification thereof and shall communicate the Head of the office about such delay.

4.

Procedure to obtain information.

(1)

A citizen desirous of any information may apply for information in form A to the Public Information Officer, with the required fee in shape of Treasury Challan or cash as specified in the Schedule under the appropriate head of Account:

Provided that application fee shall not be payable in case of a person whose name appears in the latest list of persons

below poverty line for which he has to produce BPL Card.

Provided that a citizen seeking information through electronic means has to submit evidence regarding deposit of prescribed application fee.

(2)

The Public Information Officer or any other officer authorized by him shall furnish the acknowledgement and after being satisfied with the identity of the applicant shall also intimate in form B as soon as possible the amount of cost for providing information required to be paid by the applicant in cash, as mentioned in the Schedule.

(3)

The applicant may deposit the said amount within a period of fifteen days from the date of receipt of such information, failing which the application shall stand rejected.

5.

Information regarding rejection.

(1)

Where a request has been rejected under Sub-section (1) of Section 7, the Public Information Officer shall intimate the applicant, the reasons for such rejection in Form C.

(2)

Wherever information applied for is available in electronic means, the Public Information Officer may advise in form C to the applicant to obtain the information from the appropriate website to be specified by the Public Information Officer.

6.

Meeting of the recommending Committee.

- For the purpose of appointment of the State Chief Information Commissioner and the State Information Commissioner under Sub-section (3) of Section 15, the Nodal Officer shall, in consultation with the State Government, convene the meeting of the Committee for their recommendation.

7.

Memorandum of appeal.

(1)

An appeal under Sub-section (1) of Section 19 shall be filed in Form D to the officer as designated by the Public Authority to hear such appeal.

(2)

The Memorandum of appeal shall be accompanied with such fee as specified in the Schedule which shall be paid in the shape of court fee stamp.

(3)

Any person aggrieved by the decision under Sub-section (1) of Section 19, may prefer a second appeal before the State Information Commission under Sub-section (3) thereof in form E which shall be accompanied with such fee in the shape of Court-fee stamp as specified in the Schedule.

(4)

The appeal preferred under Sub-rules (1) and (3), if not accompanied with the required fee, shall be rejected by the concerned Appellate Authority, but no fee is payable by the applicant holding a BPL Card.'

(5)

Every order of the Appellate Authority shall be communicated to the appellant concerned and to the Public Information Officer where such appeal is from the order of the Public Information Officer and to the first Appellate Authority in case it is a second appeal.

8.

Guidelines by the State Government.

- The State Government shall have the power to issue guidelines not inconsistent with the provisions of the Act and these rules for smooth implementation of the provisions of the Act and the rules.

9.

Penalties.

- In the event of imposition of penalty under Section 20 on the Public Information Officer concerned, such penalty may be deposited by the said officer by Treasury Challan under the appropriate receipt Head of the State Budget within a period of thirty days, failing which the amount shall be recovered from the salary of the officer concerned.

10.

Calculation of cost of damage.

- If any damage is caused to the public property in the course of giving any information in the form of samples of materials, the damage caused to such property shall be included while calculating further fees representing the cost of providing the information.

11.

[Maintenance of Register.

[Substituted by the Orissa Right to Information (Amendment) Rules, 2006 vide S.R.O. No. 251/2006 dated 29.5.2006, Orissa Gazette Extraordinary No. 742 dated 30.5.2006.]

(1)

The Public Information Officer shall maintain a register in Form-F for recording the details of the applications received and the information supplied by him and keep the Head of Office informed after furnishing any information and it shall be the duty of the Head of Office to ensure required assistance if any, as would be sought for by the Public Information Officer to facilitate providing information and the said Register shall remain always open to inspection by the members of public as required in respect of the proactive disclosures under Section 4 (1b) of the Act.

(2)

Each public authority shall maintain a Register for day-to-day record of the members of public who visit its office in connection with accessing or inspecting suo motu information proactively disclosed by the said authority under Section 4 of the Act.

(3)

The Public Information Officer shall maintain a cash register in Form-G for recording the details of money received by him relating to providing information and deposit the money in such Head of Account or in any Scheduled Bank in the name of such officer as the concerned Head of Office decides.]

12.

Deposit of expenditure.

- The expenditure to be incurred for production of witness or documents before the State Information Commission shall be deposited before the Commission by the party at whose instance the witnesses or the documents are to be produced.

13.

Realisation of penalties or damages.

- Any penalty or damage or any other sum payable under the Act, if not paid within thirty days of the date of receipt of the order for realization of the same or cannot be recovered, it can be realized from such person as arrears of land revenue.

Form-A

[See Rule 4 (1)]

Application for Information under Section 6 (1) of the Act

To

The Public Information Officer

(Name of the office with address)

1. Full name of the applicant

2. Father/Spouse name

3. Permanent address

4. Particulars in respect of Identity of the applicant

5. Particulars of information solicited

(a)

Subject matter of information

(b)

The period to which the information relates

(c)

Specific details of information required

(d)

[Whether information is required by post/in person/E-mail

[Substituted by the Orissa Right to Information (Amendment) Rules, 2006 vide S.R.O. No. 251/2006 dated 29.5.2006, Orissa Gazette Extraordinary No. 742 dated 30.5.2006.]

(The actual postal charges shall be included in providing information)]

(e)

In case by post (ordinary, registered or speed)

6. [Address/E-mail ID to which information will be sent & in which form]

[Substituted by the Orissa Right to Information (Amendment) Rules, 2006 vide S.R.O. No. 251/2006 dated 29.5.2006, Orissa Gazette Extraordinary No. 742 dated 30.5.2006.]

7. Has the information provided earlier

8. Is this information not made available by the Public authority

9. Do you agree to pay the required fee

10. Have you deposited application fee

(If yes details of such deposit)

11. Whether belongs to BPL category, have you furnished the proof of the same

Place :

Date :

Full Signature of the applicant

Address

Office of the Public Information Officer

Received _____ the _____ application
from-----address-----on-----seeking information.

Place :

Date :

Full name of Public Information Officer

Designation

Seal

Form-B

[See Rule 4 (2)]

Information for Payment

From

Name & Designation of the Public Information Officer

To

Name of the applicant

Address

Sir,

Please refer to your application dated -----addressed to the undersigned requesting information
on-----

-----I am to inform you that the following amount towards cost for providing information may
be deposited in cash, to enable the undersigned to furnish information sought for.

Please make payment within a period of fifteen days from the date of receipt of this intimation failing which the
application shall be rejected.

Fee

Yours faithfully

Place: Public Information Officer

Seal:

Date:

Form-C

[See Rule 5 (1) and (2)]

Intimation of rejection

Sir,

The undersigned regrets to express his inability to furnish the information asked for on account of the following reasons-

(i)
It comes under the exempted category covered under Sections 8 and 9 of the Act.

(ii)
Your application was not complete in all respect.

(iii)
Your identity is not satisfactory.

(iv)
The information is contained in published material available to Public.

(v)
You did not pay the required cost for providing information within the prescribed time.

(vi)
The information sought for is prohibited as per Section 24 (4) of the Act.

(vii)
The information would cause unwarranted invasion of the privacy of any person.

(viii)
The information as sought for by you is available in our Website.....you may download the information.

(ix)
For any other reason please see overleaf.

However, if you feel aggrieved for the above said refusal you may file an appeal before the.....within 30 days of the receipt of this letter.

Place:

Date:

Name & Designation of Public Relations Officer

To

Sri.....

.....

Form-D

[See Rule 7 (1)]

Form of Memorandum of Appeal to the first Appellate Authority under Section 19 (1) of the Act

From

.....

(Applicant's Name & address)

Before

The First Appellate Authority

1. Full name of the Appellant :

2. Address :

3. Particulars of Public Information Officer :

4. Date of receipt of the order appealed against :

5. Last date for filing the appeal :

6. Particulars of information:

(a)

Nature and subject matter of the information required :

(b)

Name of the office or Department to which the information relates

7. The grounds for appeal :

(Details if any to be enclosed in separate sheet)

Verification

IName of the appellant, son of / daughter of / wife of.....hereby declare that the particulars furnished in the appeal are to the best of my knowledge and belief, true and correct and that I have not suppressed any material fact.

Signature of the Appellant

Place :

Date :

To

.....

Name and address of Appellate Authority

Form-E

[See Rule 7 (3)]

Second Appeal under Section 19 (3) of the Act

From

.....

(Applicant's Name & address)

To

The State Information Commission

1. Full name of the Appellant :

2. Address :

3. Particulars of the first Appellate Authority :

4. Date of receipt of the order appealed against :

5. Last date for filing the appeal :

6. Particulars of information

(a)

Nature of subject matter of the information required :

(b)

Name of the office or Department to which the information relates

7. The grounds for appeal :

(Details items to be enclosed in separate sheet)

Verification

I,..... Name of the appellant, son of / daughter of/wife of hereby declare that the particulars furnished in the appeal are to the best of my knowledge and belief, true and correct and that I have not suppressed any material fact.

Signature of the Appellant

Place :

Date :

To

Orissa State Information Commission

Form-F

[See Rule 11 (1)]

Format for the Information register

Sl. No.

Date of application

Name of the person requiring the information

Address of the person

Name of information

Whether formalities have been complied by the person requiring the information

Name of the authority which the information are to be collected

1

2

3

4

5

6

7

Date on which the information shall be supplied

Date on which the authority/ authorities

concerned requested to supply the required information

No. and date of reminder issued

Date on which information are received by the

P.I.O. from the authority/ authorities concerned

Date of supply of information to the person

concerned requiring the information

Reasons in brief for not supplying information

Remarks

8

9

10

11

12

13

14

Form-G

[See Rule 11 (2)]

Cash Register

Name & Address of the Applicant

Date of application

Date of deposit of amount

Particulars of fee/ with Challan/Bank draft/

Cash

Refund, if any

Remarks

1

2

3

4

5

6

[Schedule]

[Substituted by the Orissa Right to Information (Amendment) Rules, 2006 vide S.R.O. No. 251/2006 dated 29.5.2006, Orissa Gazette Extraordinary No. 742 dated 30.5.2006.]

[See Rules 4 and 7]

Fees/Amount to be charged for providing information

Rate to be charged

Mode of deposit

Part-I

(A)

Application fee

(i)

Application fee Seeking information

Rupees ten per Application

Treasury Challan/cash

(ii)

Application fee for 1st Appeal

Rupees twenty

Court-fee stamp

(iii)

Application fee for 2nd Appeal

Rupees twenty-five

Court-fee stamp

Part-II

(B)

Amount to be charged for Providing information

(i)

A-4 or A-3 size paper created or copied

Rupees two per each folio

By cash

(ii)

Paper size larger than A-4 or A-3

Actual charge or cost price of a copy

By cash

(iii)

Inspection of records

No fee for the first hour & Rs. 5.00 for each 15 minutes

(or fraction thereof) thereafter.

By cash

(iv)

CD with cover

Rs. 50 per CD

By cash

(v)

Floppy Diskette (1.44 MB)

Rs. 50.00 per Floppy

By cash

(vi)

Maps and Plans

Reasonable cost to be fixed by P.I.O. depending upon the cost

of labour and material and equipment and other ancillary

expenses

By cash

(vii)

Video Cassette/Microfilm/Microfiche

Reasonable cost to be fixed by P.I.O. depending upon the cost

of labour and material and equipment and other ancillary

expenses

By cash

(viii)

Certified sample or models of material

Actual cost or price for sample or models

By cash

(ix)

Information in printed form

Price fixed for such publication

By cash

N.B. Proper and authenticated money receipt to be issued for all cash payment. The office is to state the cash receipt

No. on the application Form 'A'

Government of Orissa

Information & Public Relations Department

Resolution

No.PC-61/2005/ 19783 / IPR, Bhubaneswar dated 21.07.2005

Sub: Constitution of Committee.

Consequent upon enactment of a new legislation on "Right to Information", bringing out "Right to Information Act 2005", it has become imperative to constitute "Orissa State Information Commission" to deal with second stage appeal of the citizens and to monitor and. enforce the implementation of "The Right to Information Act 2005" as required under Section - 15 of the said Act.

Therefore, a Committee is hereby formed under Section 15 (3) of the said Act consisting of :

1. Sri Naveen Patnaik

Chief Minister, Orissa as the Chairperson

2. Sri J.B. Pattnaik

Leader of Opposition in O.L.A.

3. Dr. Damodar Rout

Minister of Panchayati Raj & Culture

The Committee shall recommend the name of the State Chief Information Commissioner and the State Information Commissioners not exceeding ten in number for their appointment by the Governor.

The Committee shall also recommend the modalities alongwith terms and conditions of "Orissa State Information Commission".

Order - The Resolution be published in next issue of Extra Ordinary Orissa Gazette with S.R. number.

By the order of Governor

Sd/-

(Digambar Mohanty)

Commissioner-cum-Secretary to Government.

Related AI tags, queries and research notes

Translation